

- No. 7. **Granted**. Defendant's objections are overruled.
- 3. Further responses, including the documents responsive to the requests, are due no later than ten (10) days from the date of service of this order.
- 4. Plaintiff shall prepare and e-file a conforming order, attaching a copy of this tentative ruling, no later than five (5) days from the date of this hearing and serve the order on Skinspirit.

18. 9:01 AM CASE NUMBER: C24-02649

CASE NAME: FRANCISCO PERLERA VS. FCS US, LLC

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLTF'S REQUEST FOR PROD OF DOCS, SET 1**

FILED BY: PERLERA, FRANCISCO MORLAES

TENTATIVE RULING:

Summary

Plaintiff Francisco Perlera's Motion to Compel Further Responses to Request for Production of Documents, Set One, served against Defendant FCA US, LLC is **denied**. Plaintiff's request for Sanctions is **denied**.

Background

Plaintiff Francisco Perlera ("Plaintiff") purchased a 2022 Ram 2500 vehicle (the "Subject Vehicle") manufactured by Defendant FCA US LLC ("Defendant" or "FCA") on September 30, 2021, and subsequently filed causes of action including violation of the Song-Beverly Act.

On July 3, 2024, Plaintiff served Requests for Production seeking documents relating to FCA's internal investigations, analysis, and knowledge of electrical and transmission defects in the Subject Vehicle and comparable vehicles. Plaintiff claims to streamline the Motion to Compel to focus on 28 specific requests most directly tied to liability and willfulness, identified as RFP Nos. 1, 2, 5, 6, 7, 14, 15, 16, 19, 20, 25, 27, 51, 52, 53, 54, 71, 72, 89, 90, 91, 104, 118, 119, 133, 134, 137, and 138. Defendant provided its Responses on April 17, 2025.

Plaintiff contends that FCA has responded by either limiting the scope of discovery to include only the Subject Vehicle, or by claiming an inability to comply based on boilerplate objections. Specifically, Plaintiff alleges FCA has raised objections on "overly broad" and "unduly burdensome" grounds, claimed that it neither "serviced nor sold" the Subject Vehicle, and asserted objections based on "vague and ambiguous" grounds attacking Plaintiff's definitions. Plaintiff asserts that Defendant has failed to provide Code-compliant responses and has not produced all responsive, nonprivileged documents, with responses containing boilerplate objections and refusals to produce documents often without justification.

Plaintiff claims FCA has failed to produce numerous categories of relevant documents, including internal investigation documents related to defects in the 2022 RAM 2500 Unlimited (including "accretion of knowledge" documents preceding decisions to issue TSBs, Recalls, and Campaigns), emails, field reports, and executive reviews regarding performance standards and failure rates, documents related to other consumers' warranty claims and complaints concerning the same defects, EPA and NHTSA communications (including Early Warning Reports, TREAD reports, CAIRs, CSNs, and consumer complaints), emails and ESI documentation, and executive reviews or PowerPoints.

Additionally, Plaintiff alleges FCA has not produced documents regarding the efficacy of TSBs, CSNs, and recalls performed on the Subject Vehicle, nor NHTSA disclosures required under 49 CFR 579.21, including Early Warning Reports, CAIRs, CSNs, complaints, communications, and TREAD Reports.

Defendant FCA US maintains that it has served verified Responses, Amended Responses, and Supplemental Responses to Plaintiff's Requests for Production, and has produced substantial responsive documentation exceeding five hundred pages. This production includes the Cherwell Report, Warranty Claim Report related to the Subject Vehicle, Customer Call Logs (CAIRs), Applicable Safety Recall documents, Customer Satisfaction Notification materials, and Technical Service Bulletins. FCA submits that no further document production is reasonable or appropriate, arguing that simply because Plaintiff alleges nonconformity does not make it so, and not every warrantable repair constitutes a widespread defect. Defendant emphasizes that this is not a class action but a simple lemon law case involving a single 2022 Dodge Ram 2500 vehicle, and therefore Plaintiff is not entitled to class action-level discovery through 142 requests for production.

Defendant relies on recently enacted California Code of Civil Procedure § 871.26, which provides the appropriate scope of discovery in Song-Beverly matters for cases filed after January 1, 2025, and notes that many California courts have entered Case Management Orders (CMOs) for matters filed before that date to define proper discovery scope. Defendant asserts the Court possesses both statutory and inherent authority to limit discovery that is unduly burdensome or expensive, considering the needs of the case and amount in controversy, and argues that simply because information is requested does not render it discoverable.

Defendant argues the California Lemon Law is a remedial statute with a simple burden of proof that does not require plaintiffs to show other consumers made similar complaints or even the cause of the alleged defect. The inquiry is limited to the vehicle at hand and plaintiff's individual circumstances, requiring only that the plaintiff demonstrate a defect covered by warranty that substantially impaired the vehicle's use, value, or safety, and that the manufacturer was unable to repair it after a reasonable number of attempts. Defendant contends Plaintiff demands class action-type discovery that is unnecessary to this burden, violates third-party privacy rights, and is designed solely to burden Defendant with document searches that needlessly drive-up litigation costs in this fee-shifting litigation.

Defendant characterizes Plaintiff's discovery demands as overbearing and oppressive, noting the requests seek information requiring extensive foundation for admissibility and creating an untenable circumstance where Defendant must choose between incurring discovery costs exceeding the case value or settling for more than the case is worth. Defendant insists discovery must be tailored to Plaintiff's actual vehicle rather than seeking documents related to every repair performed on any 2022 Dodge Ram 2500 or other FCA vehicles, deeming such untailored requests disproportionate to the actual dispute. Meanwhile, Plaintiff has attempted to meet and confer with FCA regarding these Requests beginning January 16, 2026, through January 22, 2025, but these efforts proved unsuccessful.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court’s decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. The principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co.*, (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman’s buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

The Court finds that Plaintiffs’ request for production of documents are relevant, as the items sought are reasonably calculated to lead to the discovery of admissible evidence. However, many of the requests are overbroad and seek potentially a large number of documents that relate to vehicles beyond the Subject Vehicles from potentially third parties and those outside of the possession, custody or control of FCA.

Meet and Confer Requirements

The parties to a discovery dispute are required to meet and confer, a reasonable and good faith attempt, to informally resolve any dispute concerning discovery. See Cal. Code Civ. Proc. §§ 2016.040, See *Golf & Tennis Pro Shop, Inc. v. Sup. Ct.* (Frye) (2022) 84 Cal.App.5th 127, 138.

In addition to the statutory requirements that obligate counsel to meet and confer on a discovery motion, Contra Costa County Superior Court local rules require the same. See L.R. 2.121(e). Additionally, the Court’s local rules states that motions “should be filed sparingly, in good faith and when the issue(s) cannot be otherwise resolved.” L.R. 2.122(c). Cal. Code of Civ. Proc. § 2016.040 requires, at a minimum, **attorneys to talk in person, by telephone, or by video conference to work out issues, rather than just send written** correspondence with an invitation to “call me if you should have any further questions or comments,” which Courts have found to be insufficient. *Jovita Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 429, 431-433.

Here, the record presented to the Court demonstrates that Counsel met and conferred only via written correspondence. There is nothing in the declarations submitted by Counsel that the Parties have complied with Section 2016.040, which requires counsel to talk in person, by telephone or video conference. There is a vague mention of a telephone conference call. Counsel are admonished that, for future discovery motions, this is a requirement. Exchanging letters is simply insufficient to comply with these statutory mandates.

Production or Inspection of Documents

Moreover, the moving party and proponent of the discovery on a motion to compel further responses to a request for production of documents must set forth specific facts showing good cause justifying the discovery sought by the demand. Code Civ. Proc. § 2031.310(b)(1). When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

If a responding party does not have documents response to a request, it must specifically, adequately and completely state a response that includes: (1) An affirmation that a diligent search and reasonable inquiry have been made in an effort to comply with the demand; (2) A statement that it has an inability to comply because the item or category has never existed, has been destroyed, is lost, misplaced, stolen or is not in the possession, custody or control of the responding party; and (3) the name and address of the person or organization known or believe to have possession, custody or control of the item or category of the item. (Cal. Code of Civ. Proc. §§ 2031.310(a)(2) and 2031.230. Absent these representations, a response is defective.

Objections and Sanctions

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, “without substantial justification, an unmeritorious objection to discovery, “ to make “an evasive response to discovery” and to make or oppose “unsuccessfully without substantial justification a motion to compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally.

CCP Section 2023.030(a) provides: “The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or an attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.”

Boilerplate objections fail to satisfy the level of specificity mandated by statute, and the use of boilerplate objections may be sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) See also Cal. Code of Civ. Proc. §§ 2023.010(e),(f) and (h), and Cal. Code of Civ. Proc. §§ 2030.210, 2030.220 (b)(c).

It is wholly improper for a party to respond to discovery by making unmeritorious objections and then refusing to identify responsive documents and producing them. California’s Discovery act was “intended to take the ‘game’ element out of trial preparation,” considering that “a lawsuit should be an intensive search for the truth, not a game to be determined in outcome by considerations of tactics and surprise.” (*Greyhound Corp. v. Super. Court In and For Merced County* (1961) 56 Cal.2d 355).

After reviewing the motions, opposition papers, and applying the foregoing statutory and decisional

authorities, the Court finds good cause to make the following rulings and orders.

Ruling

A. Plaintiff's Motion to Compel Further Responses to Request for Production of Documents from FCA:

1. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified the documents that are responsive to the request. To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order.

2. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified the documents that are responsive to the request. To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order.

5. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified the documents that are responsive to the request. To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order.

6. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified the documents that are responsive to the request. To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order.

7. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified the documents that are responsive to the request. To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order.

14. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified the documents that are responsive to the request. To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order.

15. Denied. This request is overbroad. Defendant's objection is sustained.

16. Denied. This request is overbroad. Defendant's objection is sustained.

19. Denied. This request is overbroad. Defendant's objection is sustained.

20. Denied. This request is overbroad. Defendant's objection is sustained.

25. Denied. This request is overbroad. Defendant's objection is sustained.

27. Denied. This request is overbroad. Defendant's objection is sustained.

51. Denied. This request is overbroad. Defendant's objection is sustained.

52. Denied. This request is overbroad. Defendant's objection is sustained.

53. Denied. This request is overbroad. Defendant's objection is sustained.

54. Denied. This request is overbroad. Defendant's objection is sustained.

71. Denied. This request is overbroad. Defendant's objection is sustained.

72. Denied. This request is overbroad. Defendant's objection is sustained.

89. Denied. This request is overbroad. Defendant's objection is sustained.

90. Denied. This request is overbroad and irrelevant. Defendant's objection is sustained.

91. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified documents that are responsive to this request and has agreed to produce them. . To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order.

104. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified documents that are responsive to this request and has agreed to produce them. . To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order.

118. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified documents that are responsive to this request and has agreed to produce them. . To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order.

119. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified documents that are responsive to this request and has agreed to produce them. . To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order

133. Denied. This request is overbroad. Defendant's objection is sustained.

134. Denied. This request is overbroad. Defendant's objection is sustained.

137. Denied. This request is overbroad. Defendant's objection is sustained.

138. Denied. This request is overbroad. Defendant's objection is sustained.

B. Further production: Defendant is ordered to produce documents that it has represented it would produce, but has not yet produced, no later than ten (10) days from service of this order.

C. Plaintiffs' Request for Sanctions is denied. Each party to pay their own attorney's fees and costs for prosecuting and/or defending against this motion.

D. Defendant is ordered to prepare and e-file a conforming order no later than ten (10) days from the date of this hearing, adopting and attaching a copy of this ruling.

**Law & Motion
Add On**